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CSAA INSURANCE EXCHANGE,

CARBONE, SMITH & KOYAMA, and

MICHAEL R. CHAMBERS

SUPERIOR COURT OF CALIFORNIA, COUNTY OF SAN FRANCISCO

FRANCISCUS DYLAN ROSARIO,

Plaintiff,

v.

SUBHI ABDELHALIM;

CSAA INSURANCE EXCHANGE;

DOES 1 through 50, inclusive,

Defendants.

Case No.: CGC-25-631801

**OPPOSITION TO PLAINTIFF'S
MOTION TO DEEM ADMITTED,
COMPEL, AND FOR SANCTIONS**

Hearing Date: May 15, 2026

Time: 9:00 a.m.

Dept: 301

Judge: Christine Van Aken

Complaint Filed: December 23, 2025

Amended Complaint Filed: February 25, 2026

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ELECTRONICALLY

FILED

*Superior Court of California,
County of San Francisco*

05/04/2026

Clerk of the Court

BY: JEFFREY FLORES

Deputy Clerk

1 Defendants CSAA INSURANCE EXCHANGE; CARBONE, SMITH & KOYAMA; and
2 MICHAEL R. CHAMBERS (“Defendants”) hereby submit the following in opposition to the
3 Plaintiff’s motion for leave to file a second amended complaint.

4 **I. INTRODUCTION**

5 Plaintiff’s current “motion to deem admitted, compel, and for sanctions,” i) was not timely;
6 ii) was not properly served; iii) is prejudicial to Defendants; iv) indisputably violates the stay of
7 discovery imposed as a matter of law by Defendants’ pending Anti-SLAPP motion; and v) lacks
8 substantial, or indeed any, justification.

9 **II. FACTUAL BACKGROUND**

10 On April 9, 2026, Defendants caused to be filed with the Court and served on Plaintiff by
11 Certified Mail and courtesy copy via email a copy of Defendants’ Special Motion to Strike per Code
12 Civ. Proc. § 425.16 (“Anti-SLAPP motion”). (*Declaration of Tyler J. O’Connell* [hereinafter
13 “*O’Connell Decl.*”], ¶ 2, **Ex. A** – *email serving Defendants’ Anti-SLAPP motion.*)

14 Defendants’ Anti-SLAPP motion is based on the nature of Plaintiff’s allegations as
15 contained in the original Complaint and in the First Amended Complaint (“FAC”). Plaintiff’s
16 allegations squarely target Defendants’ litigation conduct all from Plaintiff’s underlying personal
17 injury jury trial—which Plaintiff lost by defense verdict in April 2025. (*O’Connell Decl.* ¶ 3.)

18 Prior to filing the Anti-SLAPP motion, Defendants’ counsel informed Plaintiff in writing,
19 and on a phone call, of Defendants’ counsel intention of filing an Anti-SLAPP motion should
20 Plaintiff not withdraw the FAC, in its entirety—as the entirety of the purported legal theories in
21 Plaintiff’s FAC focus inextricably on Defendants’ protected litigation conduct. (*O’Connell Decl.* ¶
22 4.)

23 Plaintiff refused to withdraw his FAC, in writing and on two meet and confer phone calls.
24 And Defendants’ Anti-SLAPP motion was properly filed on April 9, 2026. (*O’Connell Decl.* ¶ 5.)

25 On April 22, 2026, weeks after Defendants’ Anti-SLAPP motion had been filed, Plaintiff
26 sent an email to Defendants’ counsel’s office purporting to serve further discovery requests and the
27 instant “motion to deem admitted, compel, and for sanctions.” (*O’Connell Decl.* ¶ 6, **Ex. B.**)

28 Included in Plaintiff’s April 22, 2026 email was a bevy of further discovery requests,

1 specifically a Sixth set of discovery. Heretofore none of Plaintiff’s written discovery requests have
2 been properly or consecutively numbered and Plaintiff has failed to serve his written discovery
3 requests—far beyond the number of requests allowed under the Code—with Code-compliant
4 supporting declarations to justify those requests being far beyond the number allowed under the
5 Code. (*O’Connell Decl.* ¶ 7.)

6 Plaintiff never provided proper notice of the hearing date for this “motion to deem admitted,
7 compel, and for sanctions,” and therefore the only way Defendants’ counsel was able to determine
8 the hearing date was by perusing the Court’s docket in this matter. (*O’Connell Decl.* ¶ 8.) Upon
9 review of the Court’s docket Defendants’ counsel determined the hearing for Plaintiff’s “motion to
10 deem admitted, compel, and for sanctions” was set for May 15, 2026—which is not timely under
11 the Code. (*O’Connell Decl.* ¶ 9.)

12 Plaintiff has sent several emails and voicemails in this matter, threatening to report
13 Defendants’ counsel to the California State Bar, unless Defendants’ counsel “vacates Defendants’
14 Anti-SLAPP motion.” (*O’Connell Decl.* ¶ 10-11, **Ex. C.**)

15 **III. LEGAL ISSUES BARRING THIS MOTION**

16 Plaintiff asks this Court to violate California law and issue a discovery order deeming
17 matters admitted and compelling responses, despite Defendants’ pending Anti-SLAPP motion. The
18 defects in Plaintiff’s current motion are myriad. Suffice it to say, in the limited time available for
19 Defendants to prepare this Opposition (in light of Plaintiff’s lack of proper notice of this motion),
20 Defendants will concisely list those issues. *First*, Plaintiff provided insufficient notice and service
21 of this Motion. *Second*, Plaintiff’s insufficient notice of this motion substantially prejudices
22 Defendants. *Third*, Plaintiff cannot file discovery motions—or serve further written discovery—in
23 light of Defendants’ pending Anti-SLAPP motion.¹ Fourth, Plaintiff’s request for sanctions is
24 unjustified, and in fact, this Court should award Defendants’ their attorney’s fees for being forced
25 to oppose this meritless motion.

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27 _____
28 ¹ Plaintiff has also filed a similarly defective Motion to Leave to Amend the Pleadings, which is set for hearing on May
6, 2026. An identical motion for leave to amend with an Anti-SLAPP motion pending—in the related action: *Rosario*
v. CSAA, CGC-25-631802, was filed and DENIED on April 30, 2026, in Department 302, Judge Quinn presiding.

1 **A. Plaintiff Provided Insufficient Notice of Motion and Defective Service**

2 Under Code Civ. Proc. § 1005(a) “Written notice shall be given, as prescribed in
3 subdivisions (b) and (c), for the following motions:

4 (12) Motion ... for Leave to Amend pursuant to Section 585.5.

5 (13) Any other proceeding under this code in which notice is required, and no other time or
6 method is prescribed by law or by court or judge.

7 (b) Unless otherwise ordered or specifically provided by law, all moving and supporting
8 papers shall be served and filed at least 16 court days before the hearing. ...and if the notice
9 is served by facsimile transmission, express mail, or another method of delivery providing
10 for overnight delivery, the required **16-day period of notice before the hearing shall be**
11 **increased by two calendar days.**

12 Here, Plaintiff served the instant Motion on April 22, 2026, via email upon Defendants.
13 (*O’Connell Decl.* ¶ 6, **Ex. B.**) Subsequently, Plaintiff set this motion for hearing on May 15, 2026.
14 This service constituted only 17 days’ notice (from the April 22 service).

15 Plaintiff’s 17 days’ notice (16 court days, plus only one (1) day) of this Motion is insufficient
16 by one day, as service by email requires a minimum of 16 days’ notice—*plus two (2) days* for
17 electronic service—for a total of 18 days’ notice required. Plaintiff’s 17-day notice of this Motion
18 is procedurally defective and subject to denial on this basis alone.

19 Furthermore, Plaintiff’s original service documents did not list a hearing date at all, and
20 Plaintiff never served a follow version with the hearing date noted. Defendants were only made
21 aware of the pending hearing by retrieving the hearing information directly from the Court’s docket.

22 In short, Plaintiff failed to provide sufficient notice of the hearing date itself, and the date
23 selected for this hearing is not timely under the Code. The motion must be denied.

24 **B. Plaintiff’s Current Motion Substantially Prejudices Defendants**

25 Plaintiff’s defective service, gamesmanship, and unsupportable effort to persist in filing
26 discovery motions, serving additional discovery despite the Anti-SLAPP motion pending, and even
27 attempt to amend the pleadings, all substantially prejudices Defendants. First, Defendants’ Anti-
28 SLAPP motion is still pending. Plaintiff’s current effort to serve burdensome, harassing, and

1 unjustified discovery while that Anti-SLAPP motion is pending, is prejudicial and seems designed
2 to consume Defendants' counsel's time, energy, and resources.

3 Second, Plaintiff has provided insufficient notice of this Motion (and no notice of the hearing
4 date) creating a rush to the courthouse for Defendants to prepare and file an Opposition to a motion
5 that has absolutely zero merit.

6 Third, the motion does not even specify which discovery is requested of which party
7 Defendant. The motion simply lumps all Defendants together, and fails to explain which discovery
8 is sought from which specific Defendant. Moreover, Plaintiff's declaration fails to attach the alleged
9 discovery requests as an exhibit, despite claiming those requests are attached.

10 **C. Plaintiff Cannot Serve Discovery or File Discovery Motions Given Defendants'**
11 **Pending Anti-SLAPP Motion**

12 California law is abundantly clear: once a Defendant files an Anti-SLAPP motion, Plaintiff
13 is precluded from engaging in discovery or filing discovery motions.

14 California's Anti-SLAPP statute, Code Civ. Proc. § 425.16, provides:

15 (g) All discovery proceedings in the action shall be stayed upon the filing of a notice
16 of motion made pursuant to this section. The stay of discovery shall remain in effect
17 until notice of entry of the order ruling on the motion. The court, on noticed motion
18 and for good cause shown, may order that specified discovery be conducted
19 notwithstanding this subdivision.

20 Indeed, "[a]s a general rule, discovery is stayed upon the filing of an anti-SLAPP motion. (§
21 425.16, subd. (g).) But the trial court may still "for good cause shown, ... order that specified
22 discovery be conducted." (*Balla v. Hall* (2021) 59 Cal.App.5th 652, 692.) If a plaintiff seeks to
23 conduct discovery, leave of Court must be obtained and to do so, a plaintiff must show "good cause"
24 for the specific discovery sought. (*Ibid.*) The good cause must be "a showing that the specified
25 discovery is necessary for the plaintiff to oppose the [anti-SLAPP] motion and is tailored to that
26 end." (*Britts v. Superior Court* (2006) 145 Cal.App.4th 1112, 1125.)

27 Here, Plaintiff's service of written discovery—and this motion—clearly violates the
28 automatic stay of discovery rule. Indeed, Plaintiff does not even mention the pending Anti-SLAPP

1 motion in his moving papers. Moreover, Plaintiff has not even attempted to demonstrate the
2 requisite “good cause” requirement, in order to conduct any limited discovery. Plaintiff’s less-than-
3 two-page memorandum in ostensible support of his “Motion for to Deem Admitted, Compel, and
4 for Sanctions,” appears to be a partial draft insofar as the “Application” section appears to be an
5 internal memo prompt, not legal analysis. (*Plf’s Mtn*, MPA, p.3, lines 1-2.)

6 **D. Plaintiff’s Motion has not Been Filed with Substantial Justification and the Request**
7 **for Sanctions is Inappropriate and Unreasonable**

8 Plaintiff’s Motion cannot prevail and his request for sanctions therein is wholly unjustified.
9 Furthermore, the amount of sanctions sought is unreasonable. First, Plaintiff is not an attorney and
10 therefore cannot obtain attorneys’ fees in filing this motion—were it to have any merit (it does not).
11 Plaintiff’s Declaration in support of this motion claims to have incurred 27.5 hours in preparation
12 of this motion, including 12 hours drafting the motion. However, the MPA in support of this motion
13 is less than 2-pages. This is not reasonable whatsoever. In reality, Plaintiff’s motion is meritless and
14 the request for sanctions is legally unsupportable. Moreover, Plaintiff’s abusive discovery tactics
15 (and this motion) have prejudiced Defendants and forced Defendants’ counsel to prepare and file an
16 Opposition to this motion. Defendants therefore request sanctions in the amount of **\$922.50**.
17 (*O’Connell Decl.* ¶ 11.)

18 **IV. CONCLUSION**

19 Defendants respectfully request the Court deny Plaintiff’s Motion for to Deem Admitted,
20 Compel, and for Sanctions. Defendants also request the Court sanction Plaintiff for filing this
21 meritless motion.

22 Dated: May 4, 2026

PORTER SCOTT
A PROFESSIONAL CORPORATION

Tyler J. O’Connell

23
24 By _____
25 Chad S. Tapp
26 Tyle J. O’Connell
27 Attorneys for Defendants,
28 CSAA INSURANCE EXCHANGE,
CARBONE, SMITH & KOYAMA, and
MICHAEL R. CHAMBERS

3 **PROOF OF SERVICE**

4 At the time of service, I was over 18 years of age and not a party to this action. My business
5 address is 2180 Harvard Street, Suite 500, Sacramento, California 95815.

6 On May 4, 2026, I served the following document: **OPPOSITION TO PLAINTIFF'S**
7 **MOTION TO DEEM ADMITTED, COMPEL, AND FOR SANCTIONS**

8 X	BY REGISTERED/CERTIFIED MAIL, RETURN RECEIPT REQUESTED: I caused to be served the above referenced document(s) by registered or certified mail, return receipt requested, with the United States Postal Service, in a sealed envelope with postage fully prepaid.
9	BY PERSONAL SERVICE: I caused such document to be personally delivered to the person(s) addressed below. (1) For a party represented by an attorney, delivery was made to the attorney or at the attorney's office by leaving the documents, in an envelope or package clearly labeled to identify the attorney being served, with a receptionist or an individual in charge of the office, between the hours of nine in the morning and five in the evening. (2) For a party, delivery was made to the party or by leaving the documents at the party's residence with some person not younger than 18 years of age between the hours of eight in the morning and six in the evening.
10	BY OVERNIGHT DELIVERY: I enclosed the documents in an envelope or package provided by an overnight delivery carrier and addressed to the person(s) listed below. I placed the envelope or package for collection and overnight delivery at my office or a regularly utilized drop box of the overnight delivery carrier.
11 X	BY ELECTRONIC TRANSMISSION: By electronically serving the document(s) to the electronic mail address set forth below on this date before 11:59 p.m. pursuant to Code of Civil Procedure section 1010.6(a)(2), (4) and (5).

12 Addressed as follows:

13 **PLAINTIFF, IN PRO PER**

14 Franciscus Dylan Rosario
15 7624 Melody Drive
16 Rohnert Park, CA 94928
17 soltrinox@gmail.com

18 I declare under penalty of perjury under the laws of the State of California that the foregoing
19 is true and correct. Executed on Sacramento, California on May 4, 2026.

20 *Serena Blithe*

21 Serena Blithe